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UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

THE CONSTRUCTION SPECIFICATIONS INSTITUTE, INCORPORATED, a Maryland corporation,

Plaintiff,

vs.

ZERODOCS.COM, INC., a Minnesota corporation,

Defendant.

Case No. 8:25-CV-475-JWH-JDE

The Honorable John W. Holcomb

MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF DEFENDANT'S MOTION FOR ATTORNEY FEES AND COSTS

Hearing Date	:	**Friday, 16-OCT-2026**
Hearing Time	:	9:00 AM
Hearing Location:	:	Ronald Reagan Federal Bldg. & U.S. Courthouse Courtroom 9D, 9th Floor 411 West Fourth Street Santa Ana, CA 92701-4516

(ECF No. 76)

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I. INTRODUCTION AND SUMMARY OF ARGUMENT

Following the Court's orders dismissing all claims brought by Plaintiff The Construction Specifications Institute[1] against Defendant Zerodocs.com, Inc.,[2] Defendant now respectfully moves the Court for an order awarding to Defendant the attorney fees and costs incurred in this long-running and wide-ranging litigation.

II. STATEMENT OF FACTS AND PROCEDURAL POSTURE[3]

A. The Parties

Defendant Zerodocs is a two-person company formed by Adam Schwegel and Kellie Schwegel in 2012, in Minnesota.[4] Zerodocs writes and sells construction specification documents for architects and builders.

Plaintiff CSI, "founded in 1948, is a national not-for-profit association representing more than 6,000 members dedicated to advancing the communication of construction information." Third Am. Compl. ¶15 [ECF 35]. CSI oversees volunteer work to maintain and update the "MasterFormat" work, which is "the prevailing industry standard for organizing project manuals, streamlining cost information, and linking drawing notations to specifications"

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[1] "CSI."

[2] "Zerodocs."

[3] The Court is familiar with the overall procedural posture of the case, as laid out in its September 1, 2026 Order. Zerodocs provides additional facts here which may be outside of this recitation, and which are germane to the present motion.

[4] Decl. of Adam Schwegel ("Schwegel Decl.") ¶ 4 (filed Sept. 15, 2026).

for the construction industry.[5] CSI has not disclosed revenues but represents that it licenses MasterFormat to the following large corporations: Autodesk, Bentley, Bechtel, IBM, Trimble, Procore, Graphisoft, Deltek, RIB Software, ConstructConnect, NBS Enterprises, and CoBuilder.[6]

B. CSI's Commercialization Plans and First Contacts with Defendant

In 2019, Zerodocs' owner, Adam Schwegel, watched a YouTube video in which CSI's president announced that CSI "owns" the space on how construction communication is organized.[7] On October 13, 2022, CSI launched "Crosswalk"[8] — a subscription software service that appeared to be CSI's intended replacement for the printed MasterFormat books and digital files. To Mr. Schwegel, CSI seemed to be promoting Crosswalk as the only CSI-authorized MasterFormat software.[9]

In 2022, CSI published a "frequently asked questions" page on its website in which CSI claimed that "MasterFormat does not contain specifications or specification templates."[10] So, while it appeared that, as of 2022, Defendant's SimpleSpecs template product did not compete with CSI's MasterFormat, CSI was introducing a product called "CrossWalk" that would eventually compete

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[5] Third Am. Compl. ¶ 16 [TAC ¶ 16].

[6] Id. ¶ 17.

[7] Schwegel Decl. ¶ 9.

[8] Id. ¶ 10.

[9] Schwegel Decl. ¶ 10; id. Exh. 1.

[10] Schwegel Decl. ¶ 12; id. Exh. 2.

with Defendant's product.[11]

On February 28, 2022, Zerodocs received an email from a Crosswalk representative suggesting that Zerodocs license the CSI MasterFormat. A year later, Zerodocs received a letter dated February 8, 2023, from Attorney Paul Jorgensen on behalf of CSI, demanding that Zerodocs accept CSI's license or face litigation.[12]

In response to CSI's February 8, 2023 letter, Zerodocs immediately removed all references to "CSI" or "MasterFormat" from its company webpages and double-checked to ensure that all blog posts attributed CSI.[13]

C. The Virginia Lawsuit

On October 26, 2023, CSI filed a lawsuit against Zerodocs in Virginia.[14] The filed complaint[15] asserted claims for copyright infringement (17 U.S.C. § 501), unfair competition (15 U.S.C. § 1125(a)(1)(A)), trademark infringement (15 U.S.C. § 1117), and trademark dilution (15 U.S.C. § 1125(c)).[16]

Within weeks (or by December 12, 2023), Zerodocs placed notices at the bottom of its public-facing webpages disclaiming any affiliation with CSI or ownership of the MasterFormat system.[17]

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[11] Schwegel Decl. ¶ 14.

[12] Id. ¶ 16.

[13] Id. ¶ 17.

[14] Id. ¶ 14.

[15] Hereinafter, the "Virginia Complaint."

[16] Schwegel Decl. Exh. 5.

[17] Schwegel Decl. ¶ 20; id. Exh. 7.

CSI allowed the Virginia case to languish. But, on May 24, 2024, apparently after serving the Virginia Secretary of State, CSI obtained entry of default and moved for default judgment.[18]

When Zerodocs' California-based intellectual-property counsel, Mandana Jafarinejad – with whom CSI had been in contact since November 2023 – learned from CSI about that motion, she communicated Zerodocs' intent to oppose the motion to CSI in writing.[19]

CSI neither filed that writing with the Virginia district court nor otherwise communicated Zerodocs' intent to oppose default judgment to the Virginia district court.[20]

In June 2024, Zerodocs expanded its website notices of non-affiliation with CSI to include the following language: "Zerodocs is in no way affiliated with or endorsed or sponsored by Construction Specifications Institute, Inc."[21]

At about the same time, Zerodocs retained counsel to appear in Virginia and on June 24, 2024, Zerodocs' attorney moved to set aside default. Because CSI opposed, Zerodocs was obligated to litigate the motion fully.[22]

On July 19, 2024, the Virginia district court issued an order granting Zerodocs' motion to set aside default. The court also denied CSI's motion for default judgment as moot.[23]

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[18] Schwegel Decl. ¶ 22.

[19] Id. Exh. 8.

[20] Id. ¶ 24; id. Exh. 9.

[21] Id. ¶ 27; id. Exh. 10.

[22] Id. ¶ 29.

[23] Id. ¶ 31; id. Exh. 11.

In that order, the court allowed CSI to file a request for an award of attorneys' fees but limited the motion to cover fees spent "in relation to the Motion for Default Judgement only."[24]

On July 29, 2024, Zerodocs filed a motion to dismiss the Virginia complaint for lack of personal jurisdiction.[25] Because CSI opposed the motion to dismiss for lack of personal jurisdiction, Zerodocs had to litigate that motion fully.[26]

In the meantime, on August 1, 2024, CSI filed its motion for attorney fees. Notwithstanding the court's July 19, 2024 restriction on CSI to a motion for fees only for Plaintiff's default-judgment motion, CSI sought to recover fees for both that motion and its filed opposition to Zerodocs' motion to set aside default.[27]

On August 29, 2024, at the hearing on Zerodocs' motion to dismiss, the court dismissed the complaint from the bench.[28]

D. Interbellum Licensing Negotiations

On September 13, 2024, CSI's lawyer emailed Zerodocs' counsel a draft agreement that offered to license "the MASTERFORMAT® trademark and the copyrighted MasterFormat works" to Zerodocs for two years at $5,000 a year provided that Zerodocs pay $10,000 upfront and submit to personal jurisdiction

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[24] Schwegel Decl. ¶ 33; id. Exh. 12](emphasis in original).

[25] Id. ¶ 34, Exh. 12.

[26] Id. ¶ 35.

[27] Id. ¶ 37–40; id. Exhs. 13, 14.

[28] Id. ¶ 41; id. Exh. 15.

of Virginia.[29]

CSI counsel's email, however, demanded additional terms:

(a) after the first two years, Zerodocs was to pay different rates "based on CSI policy and Zerodocs' gross revenue"; and

(b) Zerodocs was to pay CSI $45,000 immediately to cover CSI's attorney fees to date.[30]

Following up Plaintiff's offer, on September 30, 2024, CSI's counsel emailed Zerodocs' counsel as follows:

> I wanted to get back with you to see if your client had any reaction to our settlement demand. ***We've now retained California counsel, so that lawsuit is going to go forward unless we resolve it***. Plus, his rates are higher than mine: if CSI is successful on the Lanham Act claim, ***that could get expensive for Zerodocs***.[31]

Zerodocs responded that same day. Defendant counteroffered $2000 for a one-year licensing agreement with the option — but not the obligation — to renew at that rate and with no obligation to open Zerodocs' books to CSI.[32] Zerodocs also offered to terminate its SimpleSpecs software service with no payment of money to CSI.[33] CSI responded with two equally unreasonable counter-offer options.[34]

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[29] Schwegel Decl. ¶ 44.

[30] Id. ¶ 45.

[31] Id. ¶ 46 (emphasis added).

[32] Id. ¶ 47; id. Exh. 17.

[33] Id. ¶ 49; id. Exh. 18.

[34] Id. ¶ 50, Exh. 19.

On November 11, 2024, Zerodocs decided to stop offering the SimpleSpecs software and informed CSI of this in writing. On that basis, Zerodocs additionally declined CSI's offers either to license or pay to settle.[35]

E. The California Lawsuit

CSI refiled its claims against Zerodocs in California on March 11, 2025, again asserting claims for copyright infringement; trademark infringement, unfair competition, and trademark dilution under the Lanham Act and, in lieu of Virginia claims, a claim for the violation of the California Business and Professions Code § 17200 et seq.[36]

Defendant waived service of process and moved to dismiss all claims under Fed. R. Civ. P. 12(b)(6).[37] (Defendant's legal challenge has remained largely unchanged throughout these proceedings—from the beginning through its final and successful motion for summary judgment.)

On May 28, 2025, the Court denied Defendant's motion without prejudice but, on its own motion, granted Plaintiff CSI leave to amend.[38]

Plaintiff filed its first amended complaint on June 13, 2025,[39] but, after meeting and conferring with Defendant, filed a second amended complaint on July 3, 2025.[40] Defendant promptly moved to dismiss the second amended

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[35] Schwegel Decl. ¶ 52; id. Exh. 20.

[36] Orig. Compl. [ECF No. 1].

[37] [ECF No. 16.]

[38] [ECF No. 21.]

[39] [ECF No. 22.]

[40] [ECF No. 27.]

complaint on the same grounds.[41]

On August 15, 2025, the Court granted the motion to dismiss and granted leave to amend all claims except for CSI's claim for trademark dilution under 15 U.S.C. § 1125(c), which was dismissed with prejudice. The Court also invited Defendant to address any legal challenges to the prospective third amended complaint with a motion for summary judgment.[42]

Defendant accordingly moved for summary judgment on October 3, 2025,[43] but, due to limited time to prepare the joint appendix, the parties were unable to comply with the Court's local rules. The Court denied Defendant's motion without prejudice.[44]

Throughout December 2025, Defendant tried to meet and confer with Plaintiff regarding preparation of the joint appendix.[45] Plaintiff refused, on grounds of counsel's trial schedule and holiday plans.[46]

Discovery closed on January 23, 2026, under the Court's scheduling order.[47] Plaintiff failed to seek discovery from Defendant, only to move ex parte to plead for a one-month discovery period for depositions, document discovery,

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[41] [ECF No. 28.]

[42] [ECF No. 33.]

[43] [ECF No. 38.]

[44] [ECF No. 42.]

[45] Decl. of Matthew Lapple in Opp'n to Pl.'s Ex Parte Appl. [ECF No. 50] (detailing Pl.'s counsel' rebuff of requests to discuss summary judgment scheduling and contribution to joint appendix).

[46] Id.

[47] [ECF No. 34.]

and interrogatories.[48]

Plaintiff took three depositions, including the deposition of Adam Schwegel, the deposition of Kellie Schwegel, and the deposition of the SimpleSpecs author, Craig Haney. Plaintiff also produced tens of thousands of pages of documents and caused Defendant to gather and produce business records.[49]

On March 5, 2026, Defendant moved for summary judgment of all remaining claims.[50] Plaintiff cross-moved for summary judgement on all claims.[51]

On September 1, 2026, the Court granted summary judgment for Defendant on all four remaining causes of action.[52]

F. Defendant Zerodocs seeks an award of all attorney fees incurred during the course of this entire dispute

The total amount sought is $392,841.80[53]. Zerodocs also offers various ways to calculate and/or apportion a partial fee award by presenting fees:

- based upon the fees in the present lawsuit, only $361,495.31;
- based upon the phase of the present case, e.g., Zerodocs' fees to address

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[48] [ECF No. 48.]

[49] Schwegel Decl. ¶¶ 53–54.

[50] [ECF No. 56.]

[51] [ECF No. 58.] In August, Plaintiff filed an ex parte application to request that the Court rule on the pending summary judgment motions. [ECF No. 71].

[52] [ECF No. 75.]

[53] Lapple Decl. ¶ 59.

the Original Complaint, the First and Second Amended Complaints, and the Third Complaint; or

- based on a reasonable assessment of the fees incurred to respond to each cause of action, based on either a line counting in the Court's September 1, 2026 Order, or a line counting in Zerodocs' successful opening brief.[54]

III. RELEVANT LAW AND LEGAL STANDARDS

A. Section 505 of Title 17, the Copyright Act authorizes courts in their discretion to award fee recovery to prevailing parties

"In any civil action under this title, the court in its discretion may allow the recovery of full costs by or against any party other than the United States or an officer thereof" and "may also award a reasonable attorney's fee to the prevailing party as part of the costs." 17 U.S.C. § 505. In this, fee motions from prevailing plaintiffs and prevailing defendants are treated alike. Fogerty v. Fantasy, Inc., 510 U.S. 517, 527, 114 S. Ct. 1023, 1030, 127 L. Ed. 2d 455 (1994).

In lieu of fixed formulas, district courts are directed to make particularized, case-by-case determinations after considering, inter alia, the losing party's frivolousness, objective unreasonableness, and motivation, as well as the need for compensation or deterrence, the degree of success the winner obtained, the purposes of the Copyright Act, any chilling effect, and the financial position of the losing party. See Fogerty, 510 U.S. at 535 n.19 (identifying non-exclusive factors to guide fee motion review to include "frivolousness, motivation, objective unreasonableness (both in the factual and in the legal components of the case) and the need in particular circumstances to advance considerations of

[54] Lapple Decl. ¶¶ 64-92.

compensation and deterrence"); Ets-Hokin v. Skyy Spirits, Inc., 323 F.3d 763, 766 (9th Cir. 2003) (holding that the 9th Circuit considers "degree of success obtained, the purposes of the Copyright Act, and whether the chilling effect of attorney's fees may be too great or impose an inequitable burden on an impecunious plaintiff").

"There is no precise rule or formula for making these [fee] determinations" under § 505, "instead equitable discretion should be exercised." Fogerty, 510 U.S. at 534 (citation omitted). Section 505 "grants courts ***wide latitude*** to award attorney's fees based on the totality of circumstances in a case." Kirtsaeng v. John Wiley & Sons, Inc., 579 U.S. 197, 203, 136 S. Ct. 1979, 1985, 195 L. Ed. 2d 368 (2016) (emphasis added).

B. Section 1117(a) of Title 15, the Lanham Act, authorizes courts in their discretion to award fee recovery to the prevailing party in "exceptional cases"

The Lanham Act provides that the "court in exceptional cases may award reasonable attorney fees to the prevailing party." 15 U.S.C. § 1117(a). In this equitable and discretionary determination, district courts consider factors very similar to those considered for copyright-fee award — e.g., the losing party's frivolousness, motivation, objective unreasonableness both in the factual and legal components of the case, as well as the needs for compensation and deterrence. SunEarth, Inc. v. Sun Earth Solar Power Co., 839 F.3d 1179, 1180-81 (9th Cir. 2016).

Under the Lanham Act fee statute, an "exceptional" case is one with a gross disparity between the opposing parties' positions ***or*** a case litigated in an unreasonable manner. SunEarth, 839 F.3d at 1180-81. An "exceptional" determination is based on the "totality of the circumstances" using a preponderance-of-the-evidence standard. Id.

IV. ARGUMENT

A. The Court should award Defendant all fees incurred in the defense of CSI's copyright claim because the majority of the Supreme Court and Ninth Circuit factors favor Defendant's recovery

1. "Objective reasonableness," "frivolousness," and "motivation" overlap in the case authorities and support a fee award here

Because courts determining fee motions often overlap these factors, Defendant discusses them together and urges the Court to find that each favor an award of fees, here.

First, "'[o]bjective unreasonableness' is generally used to describe claims that have no legal or factual support." Milkcrate Athletics, Inc. v. Adidas Am., Inc., 619 F. Supp. 3d 1009, 1023 (C.D. Cal. 2022). While this factor is accorded substantial weight, a district court properly may award fees where the totality of the circumstances outweighs a losing plaintiff's apparently objectively reasonable initial position. See Kirtsaeng 579 U.S. at 208–09 (noting that, although "objective reasonableness" should be accorded "substantial weight," its presence does ***not*** control the fee determination since "a court may order fee-shifting because of a party's litigation misconduct, whatever the reasonableness of his claims or defenses"); see also Johnson v. Storix, Inc., 716 F. App'x 628, 631–32 (9th Cir. 2017) (affirming fee award that accorded substantial weight to objectively reasonable losing position but ultimately and "properly" found that motivation, the degree of the defendant's success, and considerations of compensation and deterrence supported recovery); accord Moi v. Chihuly Studio, Inc., 846 F. App'x 497, 500 (9th Cir. 2021) (no particular factor must be satisfied to support a fee award).

"Frivolousness" is found in circumstances where a party maintains a position after it becomes apparent that the plaintiff cannot establish liability. In

Design Basics, LLC v. Kerstiens Home & Designs, Inc., the district court found that, while it was not frivolous for Design Basics ***initially*** to bring a copyright infringement claim based on the similarities of the house plans, it bordered on frivolous to maintain the litigation after the Seventh Circuit explained "substantial similarity" and that "even subtle differences can indicate that there is no copyright infringement," and "many differences are not trivial." No. 116CV726-TWP-DLP, 2019 WL 4749916, at *6 (S.D. Ind. Sept. 30, 2019), aff'd sub nom. Design Basics, LLC v. Kerstiens Homes & Designs, Inc., 1 F.4th 502 (7th Cir. 2021).

With respect to motivation, "[a] finding of bad faith can be based on actions that led to the lawsuit, as well as on the conduct of the litigation." Epikhin v. Game Insight N. Am., No. 14-CV-04383-LHK, 2016 WL 1258690, at *6 (N.D. Cal. Mar. 31, 2016) (citation omitted).

In Florentine Art Studio Inc. v. Vedet K. Corp., 891 F. Supp. 532 (C.D. Cal. 1995), the court granted the prevailing defendant attorney fees upon finding that—pre-suit—plaintiff knew that defendant already redesigned two of the accused works and did not copy the other. Discovery in the case only showed that any profits accruing to the defendant were de minimis, and the defendant also offered to stipulate to an injunction while also putting plaintiff on notice of the substantive defenses that ultimately prevailed.

a. Plaintiff began the instant dispute by filing suit in a court that did not have personal jurisdiction over Defendant, thereby subjecting Defendant to wasteful and expensive motion practice — i.e., motion to set aside default, motion to oppose attorney fees, motion to dismiss for lack of personal jurisdiction — predicated upon Defendant's copyright and Lanham Act disputes but not actually reasonably directed to resolving them

Facts here show that Plaintiff chose to prosecute its copyright claim and

Lanham Act claims unreasonably, frivolously, and in a manner that gives rise to the inference that Plaintiff's motivation was rooted in bad faith.

First, Plaintiff instituted its copyright and Lanham Act claims against Defendant in the Eastern District of Virginia, approximately 2,700 miles from Defendant's home judicial district. After failing to personally serve process, Defendant served the Virginia Secretary of State and thereon sought and obtained entry of default before moving for default judgment.

CSI apparently attended the hearing on that motion without notifying the Court that Defendant sent CSI written notice of Zerodocs' intent to defend itself. Even after the California-based Defendant retained Virginia-admitted counsel and specially appeared, Plaintiff pursued default judgment. Plaintiff not only refused to transfer to this Judicial District but obligated Defendant fully to litigate its 12(b)(12) motion to dismiss to dismissal, which Defendant obtained from the bench, at the hearing.

b. Defendant notified Plaintiff that sales of the accused SimpleSpecs had ceased, and Defendant offered to settle; Plaintiff filed suit in California, anyway, seeking statutory damages that Plaintiff knew or should have known that it did not have a right to recover

In the immediate aftermath of the Virginia dismissal, CSI still demanded that Zerodocs agree to a burdensome license agreement that would allow CSI future access to Defendant's finances to permit CSI to reset licensing renewal rates at Plaintiff's sole discretion. In response, Zerodocs notified CSI in writing that Zerodocs would entirely and voluntarily stop all sales of the SimpleSpecs service and informed Plaintiff that SimpleSpecs' revenue did not justify continuing to offer the service, especially in light of CSI's legal attacks.

Nevertheless, Plaintiff still insisted on filing suit again, in California. And, as if to add salt to the wound, Plaintiff asserted claims for copyright

statutory damages that it did not have a right to seek.[55]

c. The California proceedings were punctuated by expensive rounds of motion practice due to Plaintiff's insistence on maintaining the lawsuit—and expanding into discovery that apparently yielded no evidence—even after it knew the Court did not believe it to have a copyright-protectable "taxonomy"

Once in this court, Plaintiff prosecuted and maintained this suit through multiple rounds of motions practice despite the Court's repeated expressions of skepticism in the protectability of Plaintiff's MasterFormat system.[56]

Instead of seeking a memorandum order dismissing CSI's second or third amended complaint and appealing directly to the Ninth Circuit Court of Appeals, Plaintiff spun out emergency motions, obligated Defendant to respond to expedited discovery, and pushed motions for summary judgment on claims CSI already knew to be wobbly.

Whatever reasonableness, non-frivolity, or assumption of sound motive Plaintiff may have begun with were upended by Plaintiff's own unreasonable—

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[55] A copyright owner is entitled to recover statutory damages under 17 U.S. Code § 504 instead of actual damages and profits, provided the work was timely registered with the U.S. Copyright Office before the infringement began or within three months of its first publication. Compare Third Am. Compl. ¶ 6(d) (stating operative copyright for the 2020 MasterFormat was registered on April 2, 2024) with id. ¶ 69 (claiming statutory damages). The alleged infringement is based on an accused work first published in February 2019. Schwegel Decl. ¶ 5.

[56] First, the Court encouraged Plaintiff to amend its original complaint. Then, the Court dismissed Plaintiff's second amended complaint after providing a detailed tentative order setting forth the legal deficiencies of Plaintiff's copyright claim. Finally, the Court invited Defendant to seek summary judgment on Plaintiff's third amended complaint. Plaintiff cannot claim it was not warned that the "taxonomy" theory was on shaky ground from the jump.

and at times inexplicable—behavior in protracting and multiply litigation that it knew or should have known would be rejected from two different district courts.

2. The factor considering the "need for compensation or deterrence" favors fee recovery

a. The only way to compensate Defendant for money spent defending against Plaintiff's non-meritorious copyright claims is by awarding fees here

First, because there was never a means for Defendant to recover a monetary judgment from Plaintiff, a fee award constitutes the only means for Defendant to recover any compensation for the hundreds of thousands of dollars sunk into defending against Plaintiff's improper copyright claims.

In Brayton Purcell LLP v. Recordon & Recordon, 487 F. Supp. 2d 1124, 1130 (N.D. Cal. 2007), the district court denied the prevailing party attorney fees because the court noted that the winning plaintiff "has already been well compensated through the arbitration award [of] … substantial statutory damages," which "substantial arbitration award" already serves as an adequate deterrent to potential future infringement, whether by [defendant] or another person or entity.

Here, in contrast, Defendant has not received — and Plaintiff is not liable to pay — a single penny in monetary damages. Defendant sank nearly $400,000 into this case for no corresponding compensation and no reward except to get out from under Plaintiff's coercive licensing demands and lawsuit threats. The only avenue left for Defendant to recover the funds used in Plaintiff's unmeritorious lawsuit runs through this very motion. The "compensation" factor favors an award of fees.

b. Plaintiff has no incentive to give up coercive licensing threats enforced with wasteful litigation without a fee award

If CSI can sue a small specification company, lose on every claim, and walk away with no financial consequence, nothing stops them from doing it again to the next small business that holds out against a coercive license demand. A fee award in this case sends a very clear signal to the entire industry that this type of enforcement strategy carries real risks. Courts are permitted to consider this kind of systemic deterrence effect in a fee motion from a defendant who has prevailed as completely as Zerodocs. The "deterrence" factor favors a fee award.

3. "Degree of success the winner obtained" favors fee recovery

There is no doubt that Zerodocs prevailed on CSI's copyright claim.[57] "[C]omplete success" on the merits, as opposed to a technical defense, weighs in favor of an award of attorney's fees. See Tresóna Multimedia, LLC v. Burbank High Sch. Vocal Music Ass'n, 953 F.3d 638, 653 (9th Cir. 2020). Defendant paid dearly to vindicate itself in the lawsuit against Plaintiff on the merits. Accordingly, the "success obtained" factor favors an award for Zerodocs.

4. "Purposes of the Copyright Act" favors fee recovery

In the Ninth Circuit, "the most important factor in determining whether to award fees under the Copyright Act, is whether an award will further the purposes of the Act." Mattel Inc. v. MGA Entm't, 705 F.3d 1108, 1111 (9th Cir. 2013). "Although the Copyright Act serves to prevent infringement, "copyright law ultimately serves the purpose of enriching the general public through access to creative works." Zobmondo Ent. LLC v. Falls Media LLC, No. 06-CV-3459-

[57] See Judgment [ECF No. 75].

ABC-JTL-X, 2009 WL 202034, at *3 (C.D. Cal. Jan. 23, 2009) (citing Fogerty v. Fantasy, Inc., 510 U.S. 517, 527, 114 S. Ct. 1023, 127 L.Ed.2d 455 (1994)). Consequently, "baseless claims, … are inimical to the purposes of the Copyright Act. These types of claims, and fear of specious lawsuits, can chill creative expression resulting in the diminution of creative works. An award of attorney's fees would serve as a deterrent for such claims." Zobmondo, 2009 WL 202034, at *3.

MasterFormat is not an obscure private work, it is the organizational backbone of the entire North American construction industry, used by federal agencies including the Department of Veterans Affairs and the Department of State according to CSI's own complaint. In successfully defending itself against CSI's copyright claim and securing a judicial opinion that the MasterFormat classification system is not protectable by copyright, Zerodocs has freed a critical specifications taxonomy from the threat of coercive and unjustified litigation, to the benefit of the public. The Court should consider the degree to which this litigation has helped to provide a boon to the public as it conducts its fee analysis.

The purposes of the Copyright Act have been advanced by Zerodocs in its successful defense against CSI's copyright claims. This factor supports allowing Zerodocs to recover its fees.

5. Permitting Defendant to recover its reasonable fees in defending against an unmeritorious copyright claim would not produce a "chilling effect"; this factor favors a fee award

The specter of a "chilling effect" does not exist. There is no evidence of record suggesting that other industries will fail to develop useful taxonomies for communication purposes, if that taxonomy cannot be protected by copyright. If anything, this case will clarify the line between protectable, and non-protectable taxonomies, and promote the development of industry taxonomies that are

available for all and which benefit a whole industry, without the economic drag of unwarranted licensing fees. On the other hand, prohibiting Defendant from recovering fees permitted by statute—fees spent to defend against improper copyright assertions by a large, coercive organization—***would*** scare other defendants from standing up for themselves when faced with a bully. This factor favors an award of fees.

6. The factor considering whether a fee award would "impose an inequitable burden on an impecunious party" favors recovery

In the Glacier Films (USA), Inc. v. Turchin, 896 F.3d 1033, 1037 (9th Cir. 2018), the Ninth Circuit held that courts may also consider "the purposes of the Copyright Act" and "whether the chilling effect of attorney's fees may be too great or impose an inequitable burden on an impecunious [litigant]."

By its own assertions, CSI is not impecunious. CSI is a 6000-member association that controls the licensing rights and fees for the MasterFormat system as well as the associated printed publications, subscription software services, and associated intellectual property.[58]

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[58] See generally Third Am. Compl. ¶¶ 15 & 17 [ECF No. 35]; see also id. at 17 {asserting that CSI licenses its intellectual property to "multinational corporations throughout the world with combined revenues of over $92 billion. To name just a few, the MasterFormat Work is licensed for use by Autodesk, Bentley, Bechtel, IBM, Trimble, Procore, Graphisoft, Deltek, RIB Software, ConstructConnect, NBS Enterprises, CoBuilder. The MasterFormat Work is also licensed for use not only throughout North America but also in Europe, in the Asia-Pacific region, and in the Middle East. In addition to those multi-national companies that are current licensees of the MasterFormat Work, Plaintiff has also received inquiries for licenses from the following well-recognized companies and agencies: Kiewit, Johnson and Johnson, SRT Consultants (Water Resource Engineers), D'Leon Consulting Engineers, Henkel Corporation (Consumer and Craftsman Adhesives), Cape Coral Utilities, Royal Canadian Mounted Police, Real Property and Environmental Management Branch"). Given that CSI's

Allowing Defendant to recover the $392,841.80 it sunk into its ultimately meritorious defense against the copyright claim would not impose an inequitable burden. This factor favors fee recovery.

B. The Court should award Defendant all fees incurred defending the three claims arising under the Lanham Act because Plaintiff's unreasonable litigation conduct renders this an "extraordinary" case warranting fee recovery

The Ninth Circuit recognizes that a plaintiff's pursuit of "groundless, frivolous, and unreasonable arguments, especially after the court saw [that plaintiff] was unable to produce evidence of infringement" can warrant "the district court's finding that the case was 'exceptional' and its award of attorneys' fees against [the plaintiff]." Ketab Corp. v. Mesriani & Assocs., P.C., 734 F. App'x 401, 411–12 (9th Cir. 2018) (citing Octane Fitness, LLC v. ICON Health & Fitness, Inc., 572 U.S. 545, 554 n.6, 134 S. Ct. 1749, 1756, 188 L. Ed. 2d 816 (2014); SunEarth, Inc., 839 F.3d at 1181).

1. The "degree of success obtained" factor favors a fee award

Zerodocs obtained complete success on Plaintiff's Lanham Act claims. First, Zerodocs defeated Plaintiff's trademark dilution claim on the pleadings. Second, Zerodocs defeated Plaintiff's Lanham Act unfair competition and trademark infringement claims on summary judgment, by asserting a defense of nominative fair use.

"standard" license takes into account a licensee's revenues and presumably sets rates based thereon — see Schwegel Decl. ¶ 45 and id. Exh. 17 — the recipient of millions of dollars of licensing revenue cannot be heard to be unduly burden by reimbursing Zerodocs' attorney fees, especially when those fees would not have been spent but for Plaintiff's multiplicity of legal proceedings.

2. The "frivolousness" and "objective reasonableness" factors favor a fee award

A party's litigating position can be considered unreasonable when its "chances of success in [the] case were slim to none." SOFA Ent., Inc. v. Dodger Prods., Inc., 709 F.3d 1273, 1280 (9th Cir. 2013). See also Jackson v. Gaspar, No. 2:19-CV-10450-DOC-E, 2022 WL 2155975, at *5 (C.D. Cal. Feb. 24, 2022) ("[O]bjectively unreasonable for Defendants to litigate the Lanham Act claim as they did … [where] [t]here was no basis for Defendants to believe in success on the merits on the issue of liability.").

Importantly, Plaintiff pressed Lanham Act claims that CSI knew or reasonably should have known to be deficient. The Court found that ***CSI itself admitted two of the three factors necessary to prove* Zerodocs' *defense***.[59] Furthermore, CSI made no effort to submit evidence of likelihood of confusion or a SleekCraft analysis, which Plaintiff was required to do to overcome Defendant's nominative fair use defense.

Even before that, however, Zerodocs had put Plaintiff on notice that Defendant had removed of all complained-of trademarks from its website before Plaintiff initiated suit in this Judicial District.

Because CSI never produced any evidence of confusion at any time during the proceedings (even after the discovery that Plaintiff insisted it be allowed to carry out on an expedited and burdensome basis) and because CSI admitted two of the three factors to prove the defense of nominative fair use; the "frivolous" and "objective unreasonableness" factors support awarding Defendant its fees.

3. The "motivation," "compensation," and "deterrence" factors favor an award in light of Zerodocs' vexatious multiplication of

[59] See Judgment [ECF No. 75] at 16 ("CSI has conceded the first two factors").

the proceedings gives rise to the inference that they acted upon improper motivation

In Jackson v. Gaspar, supra, 2022 WL 2155975, at *5, the district court concluded that the "conduct of the parties"— notably, the defendant's role in seeking "to drag out or obfuscate proceedings" — supported a determination that "this case is exceptional under the Lanham Act" sufficient to award attorney fees.

The multiplicity of proceedings in this Court and in the Eastern District of Virginia (where Plaintiff lost every motion and ultimately was turned out of court for lack of personal jurisdiction) gives rise to the inference that CSI litigated the Lanham Act disputes against Zerodocs out of an improper motive to impose financial hardship and either coerce Defendant into agreeing to an asymmetrical licensing agreement or to make an example out of a small-business licensing holdout. As CSI's Virginia lawyer threatened before CSI filed the present action, ". . . if CSI is successful on the Lanham Act claim, that could get expensive for Zerodocs."[60]

Despite beating back each of these Lanham Act claims, Defendant did not recover any money judgment. The only means of recovering any of the money Zerodocs was compelled to spend to defend against nonmeritorious Lanham Act claims is through this motion for a fee award.

The "compensation" factor favors fee shifting.

C. Because CSI's California unfair competition claim is predicated upon—and thus inextricably intertwined with—the copyright claim and the Lanham Act claims, the Court should award recovery of fees incurred in defending the related UCL claim

1. Attorney fees incurred for legal work that serves both compensable and facially noncompensable claims may be

[60] Schwegel Decl. ¶46

recovered in full

"Under the Copyright Act, a prevailing party may be awarded attorney's fees for "hybrid" work that serves both compensable and noncompensable claims." Frost-Tsuji Architects v. Highway Inn, Inc., No. CV 13-00496 SOM/BMK, 2016 WL 1257850, at *4 (D. Haw. Mar. 30, 2016), aff'd, 700 F. App'x 674 (9th Cir. 2017) (citing Fantasy, Inc. v. Fogerty, 94 F.3d 553, 561 (9th Cir. 1996) (affirming district court order that awarded attorney's fees and costs for "hybrid" entries for work that served both compensable and noncompensable claims)). See also Twin City Sportservice, Inc. v. Charles O. Finley & Co., 676 F.2d 1291, 1313 (9th Cir. 1982), cert. denied, 459 U.S. 1009 (1982) (holding that, to the extent that fees related to both compensable claims and other claims, prevailing party may recover fees in full)).

"To determine whether the claims are related, the district court should focus on whether the claims on which [the party] did not prevail 'involve a common core of facts or are based on related legal theories.'" Shame On You Prods., Inc. v. Banks, 893 F.3d 661, 669 (9th Cir. 2018) (internal citations omitted); see also Ryan v. Editions Ltd. West, Inc., 786 F.3d 754, 765 (9th Cir. 2015) (holding that district court erred by pro rata apportionment of claims that shared common set of facts and issues with fees awarded for the copyright claim).

2. Fees Zerodocs incurred for defense of the California unfair business practices claim are inseparable from fees incurred to defend against the copyright and Lanham Act claims

As the Court noted in its Judgment, because Plaintiff's claim rests on its assertion of "a predicate state or federal law claim," and no such claim

withstood scrutiny, this cause of action was also dismissed.[61] Plaintiff made no effort to assert any independent basis for this claim outside of its other causes of action. As such, it is inseparable from the copyright and Lanham Act claims.

Consequently, for the arguments set forth above in favor of awarding fees for defense against the copyright and Lanham Act claims apply here. The Court should resist apportionment and allow Defendant to recover fees incurred defeating CSI's California UCL claim.

D. The Court should award the fees in full as requested because Defendant's attorney rates were reasonable for their respective markets and because the amount of time billed was reasonable given the four claims

1. In the Ninth Circuit, courts use the "lodestar" formula to help assess the reasonableness of the fees requested

A district court may award attorney's fees by first determining a reasonable "lodestar" fee (the product of the number of hours reasonably worked by a reasonable hourly rate) and then adjusting it if necessary to ensure a reasonable fee award. Lanard Toys Ltd. v. Dimple Child LLC, 843 F. App'x 894, 897 (9th Cir. 2021).

In determining the reasonableness of an hourly rate, the court takes into account the experience, skill, and reputation of the attorney(s) requesting fees. Frost-Tsuji Architects v. Highway Inn, supra, 2016 WL 1257850, at *7 (citing Webb v. Ada County, 285 F.3d 829, 840 & n.6 (9th Cir. 2002)).

A reasonable hourly rate should reflect the prevailing market rates in the community. Webb v. Ada County, supra, 285 F.3d at 840 & n.6; Gates v. Deukmejian, 987 F.2d 1392, 1405 (9th Cir. 1992), as amended on denial of reh'g,

[61] Judgment at 18 [ECF No. 75].

(1993) (noting that rate awarded should reflect "the rates of attorneys practicing in the forum district"). The moving party bears the burden of producing satisfactory evidence that the requested hourly rate reflects prevailing community rates for similar services. Jordan v. Multnomah County, 815 F.2d 1258, 1263 (9th Cir. 1987).

"To determine the number of hours reasonably expended on the litigation, courts must consider whether 'the time could reasonably have been billed to a private client.' The party seeking fees 'has the burden of submitting billing records to establish that the number of hours it has requested [is] reasonable.'" Automattic Inc. v. Steiner, 82 F. Supp. 3d 1011, 1032 (N.D. Cal. 2015).

2. Zerodocs' attorneys' billing rates are reasonable in light of their qualifications, experience, and the prevailing rates of the markets in which each predominantly practiced

The American Intellectual Property Lawyers Association's survey evidence of attorney billing rates in different markets and median hours worked is a comprehensive and reasonable reference to rely upon in calculating the lodestar. That reference affirms that the fees Defendant seeks to recover the product of reasonable billing rates multiplied by reasonable hours worked, given the type of number of claims asserted by Plaintiff.[62]

In addition, in reviewing the overall reasonability of Defendant's incurred fees, the Court should give weight to the fact that, as the defendant, Zerodocs generally was obligated ***to respond*** to legal proceedings not of its own choosing. The only exceptions are Defendant's motion to dismiss and for summary judgment[63] — the reasonableness of which are evinced by the Court's Order of

[62] See Lapple Decl. ¶¶ 43-50, Exh. 1.

[63] [ECF Nos. 28 & 56.]

Dismissal[64] and Judgment.[65]

3. If the Court reduces recovery by apportioning claims, reference to briefing is a reasonable approach.

Defendant urges the Courts to grant Zerodocs its fees in full.

In the alternative, Zerodocs submitted the attorney billing records—redacting only privileged and confidential material—and provided rational alternatives that the Court may use to apportion fees. These are: (a) the division of attorney fees by date and life stage of the case; (b) the division of fees by cause of action using the percentage of lines in Defendant's successful motion for summary judgment; and (c) the division of attorney fees by cause of action based on the percentage of lines in the Court's summary judgment order.

Should the Court determine that the better course is to apportion the bills by claim and calculate recovery accordingly, reference to briefing priorities has been the basis of fee calculation in other cases. See Brayton Purcell LLP v. Recordon & Recordon, supra, 487 F. Supp. 2d at 1132 ("On [prevailing plaintiff's] briefing on the merits, approximately 30% of the opposition was devoted exclusively to [the innocent infringer defendant's] motion to vacate. The remaining 70% pertained to arguments advanced by the [content-copying defendant]. Given these circumstances, it is fair for the Court to award the bulk—although not all—of the fees and costs sought by [the prevailing party] against the [content-copying defendant]. The Court shall reduce the fee award by 30%.").

V. CONCLUSION

[64] [ECF No. 33.]

[65] [ECF No. 75.]

Here, all factors favor an award of attorney fees to Zerodocs. For the reasons stated herein, Zerodocs respectfully requests an award of attorney fees in the amount of $392,841.80. In the alternative, Zerodocs requests an award of attorney fees commensurate with one of the reasonable apportionment methodologies set forth in detail in the undersigned's declaration.

Respectfully submitted,

Date: September 15, 2026

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Certification of Compliance

The undersigned, counsel of record for Defendant Zerodocs.com, Inc., certifies that this brief contains 5,898, after excluding the caption, the table of contents, the table of authorities, the signature, and this certification. This word count complies with the word limit of L.R. 11-6.1.

Dated: September 15, 2026

/s/*Matthew C. Lapple*
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